



A COMMUNITY OF CHOICE

## Planning and Development Department

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Substitute  
11/13/17  
agenda

**TO:** City Councilmembers, Mayor Marian J. Orr  
**FROM:** Eric Hammer, Planning and Development Department  
**DATE:** 11/1/2017  
**SUBJECT:** Revised Maps for the Sweetgrass Annexation (UDC-17-00542)

City Councilmembers and Madam Mayor,

The City of Cheyenne Planning and Development Department has received a revised annexation map for the Sweetgrass Annexation, which is Item #7 on the Public Services Committee meeting agenda for Tuesday, November 7<sup>th</sup>, 2017. In the staff report accompanying the application, staff recommended the following conditions to the Governing Body:

1. *Correct or remove the "Note to Assessor" section per comments made by the County Assessor and Planning and Development staff.*
2. *Correct the boundary measurements, per comments by the City Surveyor.*
3. *Correct the legal description to show a full metes and bounds description, per comments by the City Surveyor.*
4. *Provide the boundary data for the W1/2 of Section 14 and the NE1/4NE1/4 of Section 15.*
5. *Add "a portion of Section 9" to the title block to match the entitlement of the associated ordinance.*

This new map fulfills all five conditions that were recommended by staff. Therefore, staff has changed our recommendation to approval without conditions.

Due to the submittal of a revised map, staff is also submitting an updated annexation ordinance to the Governing Body in order for the title block of the revised map to match the annexation ordinance. The revised map and updated ordinance have been provided to Kris Jones, Executive Assistant to the City Council, for distribution and are also attached to this memorandum. If you have any questions regarding this memorandum or the application described above, please contact me by either of the methods below.

Regards,

Eric Hammer, LEED AP Neighborhood Development  
Planner, Planning and Development Department  
[ehammer@cheyennecity.org](mailto:ehammer@cheyennecity.org)  
(307) 638-4342

Encl: Revised Annexation Map  
Revised Annexation Ordinance

CC: File  
City Attorney  
~~City Clerk~~  
Executive Assistant to the City Council

ORDINANCE NO. \_\_\_\_\_

**ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF SECTIONS 8 AND 9, ALL OF THE W½ SECTION 14, A PORTION OF THE E½E½ OF SECTION 17, AND ALL OF SECTIONS 15, 16 AND 21; TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING. (LOCATED TO THE SOUTHEAST OF THE INTERSECTION OF E. COLLEGE DRIVE AND AVENUE C)."**

**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Sweetgrass Land Co., LLC, Lummis Livestock Co., LLC, and Arp and Hammond Hardware Co., owners at the time of submittal of a portion of Sections 8 and 9, all of the W½ Section 14, a portion of the E½E½ of Section 17, and all of Sections 15, 16 and 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned PUD – Planned Unit Development and A-2 – Agricultural – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

**FIRST READING:** \_\_\_\_\_

**SECOND READING:** \_\_\_\_\_

**THIRD AND FINAL READING:** \_\_\_\_\_

\_\_\_\_\_  
MARIAN J. ORR, MAYOR

(SEAL)  
ATTEST:

\_\_\_\_\_  
CAROL INTLEKOFER, CITY CLERK

Published: \_\_\_\_\_

